

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #08	CCRB Case #: 201802480	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 01/28/2017 10:30 PM	Location of Incident: West Bound Long Island Expressway	18 Mo. SOL 7/28/2018	Precinct:		
Date/Time CV Reported Thu, 03/29/2018 2:12 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/29/2018 2:12 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Tomasz Fil	21392	945188	HWY 03
2. POM Thomas Burke	02893	921183	HWY 03

Officer(s)	Allegation	Investigator Recommendation
A . POM Tomasz Fil	Abuse: Police Officer Tomasz Fil threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POM Tomasz Fil	Discourtesy: Police Officer Tomasz Fil spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Tomasz Fil	Discourtesy: Police Officer Tomasz Fil spoke discourteously to § 87(2)(b)	C . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On March 29, 2018, § 87(2)(b) called the CCRB and filed the following complaint.

On January 28, 2017, at approximately 10:00 p.m., § 87(2)(b) and his friend, § 87(2)(b) were driving westbound on the Long Island Expressway in Queens, when they were stopped Police Officer Tomasz Fil and Police Officer Thomas Burke, both of Highway Patrol 3, in a marked RMP. Once pulled over, PO Fil approached § 87(2)(b)'s vehicle, told him that he wanted him to take a breathalyzer test and if he refused he would be locked up (**Allegation A: Abuse of Authority, unsubstantiated**). PO Fil administered the breathalyzer to § 87(2)(b) which produced a 0.0% reading, and PO Fil allegedly stated, "I can't believe this shit" (**Allegation B: Discourtesy, unsubstantiated**). PO Fil administered a second breathalyzer test to § 87(2)(b) and received the same reading. PO Fil returned to his RMP and when he returned a few minutes later he told § 87(2)(b) that he was "a disgrace to the NYPD," and allegedly called him "a fucking perp," and told him to "go fuck himself" (**Allegation C: Discourtesy, substantiated**). PO Fil issued Summons #§ 87(2)(b) to § 87(2)(b) for speeding.

There is no video evidence in this case.

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Tomasz Fil threatened to arrest § 87(2)(b)

Allegation B—Discourtesy: Police Officer Tomasz Fil spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that once he pulled over, PO Fil approached the driver side of his vehicle and asked him if he had been drinking that evening, to which § 87(2)(b) replied no (Board Review 01). PO Fil did not apprise § 87(2)(b) with any reasons as to why he thought he had been intoxicated. PO Fil told § 87(2)(b) that he wanted to administer a breathalyzer test to him, and if he refused, he would be locked up. § 87(2)(b) agreed to take the breathalyzer. PO Fil administered the breathalyzer test to § 87(2)(b) through the driver side window which resulted in a reading of 0.0% BAC. Upon seeing the results of the breathalyzer test, PO Fil allegedly began to laugh and stated, "I can't believe this shit." PO Fil administered a second breathalyzer test to § 87(2)(b) which again produced a 0.0% BAC result. § 87(2)(b) informed PO Fil that he used to be an NYPD officer, was "trained in IDTU," and told PO Fil that "if it's a zero, it's a zero, there's nothing else you can do." PO Fil ordered § 87(2)(b) to produce his license and registration. § 87(2)(b) complied and PO Fil returned to his RMP.

§ 87(2)(b)'s statement was generally consistent with § 87(2)(b)'s (Board Review 02). § 87(2)(b) did not hear what words were exchanged, if any, between § 87(2)(b) and PO Fil during the breathalyzer tests as she remained in the vehicle.

On the date of the incident, PO Fil and his partner, PO Burke, were assigned to conduct intoxicated driver enforcement on the Long Island Expressway. PO Fil pulled § 87(2)(b)'s vehicle over after observing him driving 80 mph on the Long Island Expressway which has a speed limit of 50 mph (Board Review 03). PO Fil informed § 87(2)(b) that he had pulled him over for driving at 80 mph in a 50 mph zone, and asked if he had been drinking that evening. PO Fil believed § 87(2)(b) replied no. PO Fil stated that he must have observed other signs of intoxication such as watery red eyes or slurred speech if he asked § 87(2)(b) to take a breathalyzer test but since the incident happened more than a year before he was interviewed at the CCRB he could not recall what they were. All he could remember for certain was that § 87(2)(b)'s speeding and reckless driving raised his suspicions.

§ 87(2)(b) told PO Fil that he “was an officer, too.” PO Fil asked why he was no longer with the department and § 87(2)(b) replied that, “It didn’t work out.” § 87(2)(b) then showed PO Fil a photo on his cell phone, which showed § 87(2)(b) dressed in uniform, standing within an unknown precinct’s stationhouse, holding a machine gun. PO Fil asked § 87(2)(b) if he would submit to a breathalyzer test and he replied yes. PO Fil did not recall telling § 87(2)(b) he would be locked up if he refused to take the breathalyzer test, but believed it to be an arrestable offense.

PO Fil administered the Portable Breathalyzer Test (“PBT”) to § 87(2)(b) through the driver side window and it returned a 0.0% BAC reading. PO Fil acknowledged that he administered a second PBT to § 87(2)(b) and thought he had done so after § 87(2)(b) told him that he knew how to take a breathalyzer, but ultimately he could not recall his reasoning behind administering a second PBT. PO Fil did not recall stating, “I can’t believe this shit,” after seeing the results of § 87(2)(b)’s first PBT.

PO Burke did not have any independent recollection of this incident, did not know or recognize § 87(2)(b) did not recall conducting a vehicle stop on the date and time of the incident, and did not recall if he remained in the RMP or accompanied PO Fil to § 87(2)(b)’s vehicle, and did not make a memo book entry in regards to this incident (Board Review 04).

§ 87(2)(g)

.” It is therefore recommended that **Allegations A and B be unsubstantiated.**

Allegation C—Discourtesy: Police Officer Tomasz Fil spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that when PO Fil returned to his driver side window, he called § 87(2)(b) “a disgrace to the NYPD,” called him “a fucking perp,” and told him to go “fuck himself” (Board Review 01). § 87(2)(b) said that he became very angry, although he could not recall what, if any, response he had to PO Fil’s comments. PO Fil walked back to his RMP, and a few minutes later he returned to § 87(2)(b)’s vehicle and issued him Summons #§ 87(2)(b) for speeding (Board Review 06). On March 29, 2018, § 87(2)(b) appeared at the Queens North Traffic Violations to contest the summons issued by PO Fil. Ultimately, § 87(2)(b) was found guilty of speeding and the summons was upheld.

§ 87(2)(b)

§ 87(2)(b) thought that PO Fil called him “a disgrace” and “a fucking perp,” after he had conducted a search with his name § 87(2)(b)

§ 87(2)(b) stated that when PO Fil returned to § 87(2)(b)’s vehicle and issued him the summons, PO Fil made rude statements and used bad words towards § 87(2)(b) but she could not recall what specific phrases were said or if actual profanity was used (Board Review 02). § 87(2)(b)

§ 87(2)(b) also thought PO Fil had said that § 87(2)(b) was lying about his history with the NYPD, or said something to the effect of § 87(2)(b) had not been fired.

PO Fil stated that when he returned to his RMP to write § 87(2)(b) a summons for speeding, he looked at § 87(2)(b)'s last name and photograph on his driver's license and recognized § 87(2)(b) as a former NYPD officer § 87(2)(b)

PO Fil returned to § 87(2)(b)'s vehicle and issued him the summons through the passenger window. § 87(2)(b)'s excessive speeding was the only reason he issued him the summons. PO Fil did not recall if he and § 87(2)(b) discussed his past with the NYPD, but added that he may have mentioned that § 87(2)(b). PO Fil denied using any profanity during his interaction with § 87(2)(b). However, he also said that it was possible he called § 87(2)(b) "a disgrace," but could not specifically recall.

As detailed above in **Allegations A and B**, PO Burke did not have any independent recollection of this incident, § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation C** be substantiated.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint that § 87(2)(b) has been party to.
- PO Fil, an 11-year-member-of-service, has had two prior CCRB complaints filed against him, with a total of three allegations, one of which was substantiated. § 87(2)(g)
 - In CCRB #201307815, a search of a person allegation was substantiated against PO Fil without a CCRB recommendation for penalty. CTS contains no record of the NYPD's disposition or penalty in regards.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.

- As of April 30, 2018, § 87(2)(b) has not filed a Notice of Claim with the NYC Comptroller's Office in regards to this incident (Board Review 07).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 8

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date